

(2) The moving party failed to determine to call that expert witness, or to offer the different or additional testimony of that expert witness as a result of mistake, inadvertence, surprise, or excusable neglect, and the moving party has done both of the following:

(A) Sought leave to augment or amend promptly after deciding to call the expert witness or to offer the different or additional testimony.

(B) Promptly thereafter served a copy of the proposed expert witness information concerning the expert or the testimony described in Section 2034.260 on all other parties who have appeared in the action.

(§ 2034.620, subd. (c).)

The court agrees with Defendants that Plaintiffs cannot meet their burden under subdivision (c)(1) of section 2034.620, and Plaintiff does not argue mistake, inadvertence, surprise, or excusable neglect under subdivision (c)(2) of section 2034.620. Regardless of whether the February 2023 criminal charges affected Plaintiffs' need to understand Defendants' financial condition, Plaintiffs' Complaint explicitly sought punitive damages. Thus, Plaintiffs should have already designated a financial expert to provide an opinion to support Plaintiffs' prayer for punitive damages. (See *Adams v. Murakami* (1991) 54 Cal.3d 105, 110-111 [in determining whether the amount of punitive damages was proper, there must be evidence of the defendant's financial condition]; see *Farmers & Merchants Trust Co. v. Vanetik* (2019) 33 Cal.App.5th 638, 647 [“ ‘Evidence of a defendant's financial condition is a legal precondition to the award of punitive damages’ ”].) Furthermore, Plaintiff, already aware of the criminal proceedings, answered ready for trial and participated in jury selection between 4/27/23 and 5/1/23, all without designating an expert regarding Defendants' financial condition. Plaintiff points to nothing new that has happened since that time that would legally support the late designation of such an expert now.

For the foregoing reasons, the motion is denied.

Defendant to give notice.

9	Sterkel v. State of California	TENTATIVE RULING: <u>Motion for Summary Judgment.</u> Defendant State of California, by and through the Department of Parks and Recreation, moves for summary judgment on the complaint of Plaintiffs John Sterkel and Cindy Sterkel. For the following reasons, the motion is DENIED. A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at 851.) The parties must set forth admissible evidence. (Code Civ. Proc., § 437c(d)) A defendant moving for summary judgment satisfies its initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381–82 [pleadings serve as the outer measure of materiality in a summary judgment motion].) Once the moving party meets that burden, the burden shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable issue as to an affirmative defense or cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 855; <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (<i>Aguilar, supra</i>, at p. 850, fn. omitted.) To meet this burden, the opposing party must present substantial and admissible evidence creating a triable issue. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) In ruling on a motion for summary judgment or summary adjudication, the court must “consider all of the evidence” and all of the “inferences” reasonably drawn therefrom [citing Code Civ. Proc., § 437c(c)] and must view the evidence and inferences “in the light most favorable to the opposing party.” (<i>Aguilar, supra</i>, 25 Cal.4th at p. 843.) A court may not make credibility
---	--------------------------------	---

determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (*McCabe v. American Honda Motor Corp.* (2002) 100 Cal.App.4th 1111, 1119.) The moving party’s papers are to be strictly construed, while the opposing party’s papers are to be liberally construed. (*Committee to Save Beverly Highland Homes Ass’n v. Beverly Highland* (2001) 92 Cal.App.4th 1247, 1260.)

Trail Immunity

The Complaint pleads a single cause of action for dangerous condition on public property. The complaint alleges Plaintiff John Sterkel was injured while riding his bicycle at Doheny State Beach, and those injuries have resulted in loss of consortium to Plaintiff Cindy Sterkel. (Compl. at ¶ 3, prayer for relief ¶ 2.)

Defendant State argues it has a complete defense to Plaintiffs’ claim for dangerous condition on public property and contingent claim for loss of consortium, as the immunity set forth in Government Code 831.4 bars the claims as a matter of law.

Government Code Section 835 provides: “[A] public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition . . . [and] a sufficient time prior to the injury to have taken measure to protect against the dangerous condition.” (Gov. Code, § 835.)

Trail immunity provides ““absolute[] immun[ity] from liability for injuries caused by a physical defect of a [recreational] trail” . . . [or] . . . “caused by the condition of any trail described in section 831.4.” [Citation.]” (*Nealy v. County of Orange* (2020) 54 Cal.App.5th 594, 602 [citing *Montenegro v. City of Bradbury* (2013) 215 Cal.App.4th 924, 929 and *State of California v. Super. Ct.* (1995) 32 Cal.App.4th 325, 328].) Government Code section 831.4 provides in relevant part that: “A public entity, public employee, or a grantor of a public easement to a public entity for any of the following purposes, is not liable for an injury caused by a condition of . . . [a]ny [trail] which provides access to . . . all

types of vehicular riding, water sports, recreational or scenic areas and which is not a (1) city street or highway or (2) county, state or federal highway or (3) public street or highway of a joint highway district, boulevard district, bridge and highway district or similar district formed for the improvement or building of public streets or highways.” (Gov. Code § 831.4(a), (b).)

“Whether a property is considered a ‘trail’ under section 831.4 turns on ‘a number of considerations,’ including (1) the accepted definitions of the property, (2) the purpose for which the property is designed and used, and (3) the purpose of the immunity statute.” (*Lee v. Dept. of Parks & Recreation* (2019) 38 Cal.App.5th 206, 211 [citing *Amrberger-Warren v. City of Piedmont* (2006) 143 Cal.App.4th 1074, 1078-1079].)

Here, there are disputed facts as to whether the three factors justify applying trail immunity to the location of Plaintiff Jon Sterkel’s injuries.

Accepted Definitions

It is undisputed that on the day of the accident, Plaintiff was traveling a bike route that runs through the middle of a parking lot and/or road at Doheny State Beach Park. (Def.’s Sep. St. Nos. 1, 5-6, 11, 12; see Pltfs.’ Sep. St. [disputing other grounds].) Here, there are disputed facts as to whether the location can be defined as a “public street,” which precludes the application of trail immunity. (See Def.’s Sep. St. No. 6; Pltfs.’ Sep. St. Add. No. 6 [and evidence cited therein].)

Purpose of Design and Use

Defendant submits evidence that the bikeway is classified by the county as a Class III bikeway. (Def.’s Sep. St. No. 1 [and evidence cited therein].) While there is case law applying trail immunity to Class I bikeways (*Prokop v. City of Los Angeles* (2007) 150 Cal.App.4th 1332, 1336, 1342-1343), there is no case law extending trail immunity to Class III bikeways. Class I bikeways are defined as “[b]ike paths or shared use paths . . . which provide a completely separated right-of-way designated for the exclusive use of bicycles and pedestrians with crossflows by motorists minimized.” (Streets & Hwys. Code, § 890.4, subd. (a).) Class III bikeways, on the other hand, are “bike routes . . . which provide a right-of-way on-street or off-street, designated by signs or permanent markings and shared with pedestrians and motorists. (Streets & Hwys. Code, § 890.4, subd. (c).) In this case, the bike